

The U.P. Consumer Protection Rules, 1987

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State of Uttar Pradesh - Act

The U.P. Consumer Protection Rules, 1987

UTTAR PRADESH

India

The U.P. Consumer Protection Rules, 1987

Rule THE-U-P-CONSUMER-PROTECTION-RULES-1987 of 1987

Published on 31 August 1987

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The U.P. Consumer Protection Rules, 1987

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Last Updated 6th July, 2019

In exercise of the powers under sub-section (2) of Section 30 of the Consumers Protection Act, 1986 (Act No. 68 of 1986), the Governor is pleased to make the following Rules, namely,-

1.

Short title and commencement.

(1)

These Rules may be called the Uttar Pradesh Consumers Protection Rules, 1987.

(2)

They shall come into force on the date of their publication in the official Gazette.

2.

[Definitions.

[Substituted by Notification 01/2019/39-84-2-2019-C.P.25/2017, dated 21.2.2019.]

(1)

In these rules, unless the context otherwise requires, -

(a)

"Act" means the Consumer Protection Act, 1986 (Act 68 of 1986);

(b)

"agent" means a person duly authorised by a party to present any complaint or appeal or reply on its behalf before the State Commission or the District Forum;

(c)

"appellant" means a party which makes an appeal against the order of the District Forum;

(d)

"District Forum" means the District Consumer Disputes Redressal Forum established under clause (a) of Section 9 of the Act;

(e)

"Member" means a Member of the District Forum appointed under clause (b) of sub-section (1) of Section 10 of the Act; or a Member of the State Commission appointed under clause (b) of sub-section (1) of Section 16 of the Act, as the case may be;

(f)

"memorandum" means memorandum of appeal filed by the appellant;

(g)

"opposite party" means a person who answers complaint or claim;

(h)

"President" means the President of the District Forum appointed under clause (a) of sub-section (1) of Section 10 of the Act; or the President of the State Commission appointed under clause (a) of sub-section (1) of Section 16 of the Act, as the case may be;

(i)

"respondent" means the person who answers any memorandum of appeal;

(j)

"Selection Committee" means the Selection Committee constituted under sub-section (1-A) of Section 10 or sub-section (1-A) of Section 16 as the case may be;

(k)

"State" includes Union Territories;

(l)

"State Commission" means the State Consumer Disputes Redressal Commission established under clause (b) of Section 9 of the Act;

(2)

Words and expressions used in these rules and not defined but defined in the Act shall have the same meaning respectively assigned to them in the Act.]

3.

[Mode of appointments in District Fora.

[Substituted by Notification 01/2019/39-84-2-2019-C.P.25/2017, dated 21.2.2019.]

(1)

President of a District Forum shall be appointed either (a) by direct appointment or (b) on deputation from amongst the serving District Judges;

Provided that appointment of a serving District Judge shall not be made without the concurrence of the High Court:

Provided further that where the pendency of complaints at the starting of the year before a District Forum does not exceed five hundred or the average number of complaints filed in the last three years does not exceed five hundred, the appointment may be made on part time basis.

(2)

Notwithstanding the provisions in sub-rule (1), if the State Government is of the view that the work can be managed by assigning additional charge to a serving District Judge, it may do so with the concurrence of the Chief Justice of the High Court:

(3)

Members of the District Forum shall be appointed on whole time basis or part time basis:

Provided that the number of posts for whole time appointment shall be identified by the State Government in consultation with the President of the State Commission:

Provided further that where the pendency of complaints at the starting of the year before a District Forum does not exceed five hundred or the average number of complaints filed in the last three years does not exceed five hundred, the appointment may be made on part time basis.

(4)

In the event of pendency of complaints at the starting of the year before a District Forum exceeding one thousand five hundred or the average number of complaints filed in the last three years exceeding one thousand, the State Government may establish an additional District Forum in the District.

(5)

Presidents and Members appointed on part time basis shall function for such number of days in a week as may be decided by the President of the State Commission in consultation with the State Government, taking into consideration the work load of the District Forum:

Provided that the number of working days shall not be less than two in a week and the President and Members, appointed on part time basis, will observe regular office hours on their working days.

(6)

Presidents and Members while acting or purporting to act in pursuance of any of the provisions of this Act, shall be deemed to be public servants within the meaning of Section 21 of the Indian Penal Code.

(7)

Where any vacancy occurs in the office of the President of District Forum, the senior-most (in order of appointment) member of District Forum, holding office for the time being, shall discharge the functions of the President until a person appointed to fill such vacancy assumes the office of the President of the District Forum.

(8)

When the President of the District Forum is unable to discharge the functions owing to obscene, illness or any other cause, the senior-most (in order to the appointment) Member of the District Forum shall discharge the functions of the President until the day on which the President resumes the charge of his functions.

(9)

The President or any Member ceasing to hold office as such shall not hold any appointment in or be connected with the management or administration of an organisation which have been the subject of any proceeding under the Act during his tenure for a period of 5 years from the date on which he ceases to hold such office.]

3A.

[Selection of the President and Members of District Fora.

[Inserted by Notification 01/2019/39-84-2-2019-C.P.25/2017, dated 21.2.2019.]

(1)

Matters relating to appointment of President and Members of District Fora shall be processed by the President of the State Commission.

(2)

The process of appointments shall be initiated at least six months before the vacancy arises.

(3)

If a post falls vacant due to resignation or death of a President or a Member or creation of a new post, the process for filling the post shall be initiated immediately after the post has fallen vacant or is created, as the case may be.

(4)

The Advertisement of a vacancy, inviting applications for the posts from eligible candidates will be published in leading newspapers and also circulated in such other manner as the President of the State Commission may deem appropriate.

(5)

Selection of President and Members of District Fora shall be made by the Selection Committee constituted under sub-section (1-A) of Section 10 of the Act.

(6)

After scrutiny of the applications received till the last date specified for receipt of applications, list of eligible candidates along with their applications shall be placed before the Selection Committee.

(7)

The Selection Committee shall short list the applicants in the following manner, namely -

(a)

in case of candidates having judicial background, on the basis of the judgments and other judicial orders passed by such candidates;

(b)

in case of candidates having experience of working under the Central Government or any State Government or an undertaking under the Central Government or the State Government, on the basis of their available Annual Confidential Reports for the last ten years and their experience relevant to the post applied for;

(c)

in other cases, on the basis of performance in a written test consisting of two papers as per the following scheme. The qualifying marks in each paper shall be 50% -

Paper

Topics

Nature of Test

Max. marks

Duration

Paper I

(a) General knowledge
and Current Affairs

(b) Knowledge of
Constitution of India

(c) Knowledge of various Consumer related Laws
as indicated in the schedule.

Objective Type

100

2 hours

Paper II

(a) One Essay on
topics chosen from issues on trade and commerce, consumer related
issue or Public Affairs.

(b) One easy study of a consumer case for
testing the abilities of analysis and cogent drafting of orders.

Descriptive Type

100

3 hours

(8)

The Selection Committee shall interview all shortlisted candidates in which marks may be awarded giving due weightage to the personality, relevant past experience, knowledge of law, special achievements, aptitude and vision for the assignment to be taken up.

(9)

The Selection Committee shall recommend a panel of names of candidates for appointment as President or Member, as the case may be, from amongst the candidates in the order of merit for consideration of the State Government.

(10)

The State Government shall verify or cause to be verified the credentials and antecedents of the recommended candidates.

(11)

Every appointment of a President or Member shall be subject to submission of a certificate of physical fitness as indicated in the annexure signed by a civil surgeon or District Medical Officer.

(12)

Before appointment, the selected applicant shall have to furnish an undertaking that he does not and will not have any such financial or other interest as is likely to affect prejudicially his functions as President or Member.

3B.

Salaries/Remunerations of the whole-time President and Members of District Fora.

(1)

A serving District Judge, appointed on deputation basis, shall be entitled to pay and allowances of a District Judge in the super time scale of pay.

(2)

A whole-time President other than serving or retired District Judge shall receive a consolidated remuneration equivalent to pay at the minimum of the scale of pay of a District Judge plus other allowances as admissible.

(3)

A whole-time Member shall be paid a consolidated remuneration equal to the pay at the minimum of the scale of pay of a Deputy Secretary of the State Government plus other allowances as admissible.

(4)

Fixation of pay of the retired Government servants appointed to the posts of President or Members on whole time basis shall be on the basis of the pay last drawn reduced by the amount of pension plus other allowances as admissible to a re-employed pensioner.

(5)

There shall be an annual upward revision of the remuneration of whole time appointees at the rate of 3%.

3C.

Salaries/Remunerations of the part time President and Members of District Fora.

(1)

A part time President shall be paid a consolidated remuneration of rupees five thousand in Class X cities, rupees four thousand in Class Y cities and rupees three thousand in other places, per day of sitting.

(2)

A part time Member shall be paid a consolidated remuneration of rupees four thousand in X class cities, rupees three thousand and five hundred in Y class cities and rupees two thousand and five hundred in other places, per day of sitting.

(3)

Remuneration of the part time appointees shall be reviewed every three years taking into consideration the consumer price index.

(4)

Remuneration in the case of appointments made on additional charge basis shall be governed by the relevant provisions in the financial rules.

3D.

Leave and Medical treatment and hospital facilities to the whole-time appointees.

- Whole-time appointees shall be entitled to leave, LTC, medical treatment and hospital facilities as per the provisions applicable to Group A Government Servants in the State Government.

3E.

payment of the salary and other allowances.

(1)

The salary, remuneration and other allowances shall be defrayed out of the Consolidated Fund of the State Government.

(2)

The President and the Members of the District Forum shall be entitled for such travelling allowance and daily allowance on official tour as are admissible to Grade-1 officer of the State Government.

3F.

The terms and conditions of the service of the President and the Members of the District Forum shall not be varied to

their disadvantage during their tenure of office.]

4.

Place of sitting and other matters relating to District Forum [Section 14 (3)].

(1)

The office of the District Forum shall be located at the headquarters of the District. Where State Government decides to establish a single District Forum having jurisdiction over more than one district it shall notify the place and jurisdiction of the District Forum so established.

(2)

The working days and the office hours of the District Forum shall be the same as that of the State Government.

(3)

The official seal and emblem of the District Forum shall be such as the State Government may specify.

(4)

Sitting of the District Forum, as and when necessary, shall be convened by the President.

(5)

No act or proceedings of the District Forum shall be invalid by reason only of the existence of any vacancy among its members or any defect in its constitution.

(6)

State Government shall appoint such staff, as may be necessary to assist the District Forum in its day to day work and perform such other functions as are provided under these rules, or assigned to it by the President. The salary payable to such staff shall be defrayed out of the Consolidated Fund of the State Government.

(7)

Where the opposite party admits the allegation made by the complainant, the District Forum shall decide the complaint on the basis of the merit of the case and the document present before it.

(8)

If during the proceedings conducted under Section 13, District Forum fixes a date for hearing of the parties, it shall be obligatory on the complainant and opposite party or its authorised agent to appear before the District Forum on such date of hearing or any other date to which hearing could be adjourned. Where the complainant or his authorised agent fails to appear before the District Forum on such day, the District Forum may in its discretion either dismiss the complaint for default or decide it on merit. Where the opposite party or its authorised agent fails to appear on the day of hearing, the District Forum may decide the complaint ex parte.

(9)

While proceeding under sub-rule (8), the District Forum may, on such terms as it may think fit and at any stage, adjourn the hearing of the complaint but not more than one adjournment shall ordinarily be given and the complaint should be decided within 90 days from the date of notice received by the opposite party where complaint does not require analysis or testing of the goods and within 150 days if it requires analysis or testing of the goods.

(10)

Orders of the District Forum shall be signed and dated by the members of the District Forum constituting the Bench and shall be communicated to the parties free of charge.

5.

Procedure to be adopted by the District Forum for analysis and testing of the goods [Section 13 (1) (c)].

(1)

Under Section 13 (1) (c), if considered necessary, the District Forum may direct the complainant to provide more than one sample of the goods in clean containers with stopper properly fixed on them.

(2)

On receiving the sample of such goods, the District Forum shall seal it and fix labels on the containers carrying following information,-

(i)

name and address of the appropriate laboratory to whom sample will be sent for analysis and test;

(ii)

name and address of the District Forum;

(iii)

case number;

(iv)

seal of the District Forum.

(3)

The sample will be sent to the appropriate laboratory by the District Forum for sending report within 45 days or within such extended time as may be granted by the District Forum after specifying the nature of the defect alleged and date of submission of the report.

6.

[Mode of appointment in the State Commission.

[Substituted by Notification 01/2019/39-84-2-2019-C.P.25/2017, dated 21.2.2019.]

(1)

President of the State Commission may be appointed on whole-time basis or by assigning additional charge to a sitting Judge of the High Court:

Provided that appointment of a sitting High Court Judge, either on whole-time basis or on additional charge basis, shall not be made without the concurrence of the Chief Justice of the High Court.

(2)

Members of the State Commission shall be appointed either by (a) direct appointment or (b) on deputation from amongst the Government servants, who are qualified to hold the post:

Provided that a serving Judicial Officer shall not be appointed without concurrence of the Chief Justice of the High Court:

Provided further that where the pendency of complaints and appeals at the starting of the year before the State Commission does not exceed five hundred or the average number of complaints and appeals filed in the last three years does not exceed five hundred, the appointment may be made on part-time basis.

(3)

Members appointed on part-time basis shall function for such number of days in a week as may be decided by the President of the State Commission in consultation with the State Government, taking into consideration the work load of the District Forum:

Provided that the number of working days shall not be less than two in a week and the Members, appointed on part-time basis, will observe regular office hours on their working days.

(4)

Presidents and Members while acting or purporting to act in pursuance of any of the provisions of this Act, shall be deemed to be public servants within the meaning of Section 21 of the Indian Penal Code.

(5)

Where any such vacancy occurs in the office of the President of the State Commission, the senior-most (in order of appointment) member, holding office for the time being, shall discharge the functions of the President until a person appointment to fill such vacancy assumes the office of the President of the State Commission.

(6)

When the President of the State Commission is unable to discharge the functions owing to absence, illness or any other cause, the senior-most (in order to the appointment) member of the State Commission shall discharge the functions of the President until the day on which the President resumes the charge of his functions.

(7)

The President or any member ceasing to hold office as such shall not hold any appointment in or be connected with the management or administration of an organisation which have been the subject of any proceeding under the Act during his tenure for a period of 5 years from the date on which he ceases to hold such office.]

6A.

[Selection of the President of the State Commission.

[Inserted by Notification 01/2019/39-84-2-2019-C.P.25/2017, dated 21.2.2019.]

(1)

The process of appointment shall be initiated by the State Government at least six months before the vacancy arises.

(2)

If a post falls vacant due to resignation or death of a President or creation of a new post, the process for filling the post shall be initiated immediately after the post has fallen vacant or is created, as the case may be.

(3)

The Selection Committee constituted under sub-section (1-A) of Section 16 of the Act, shall recommend, through a search and selection process after assessing the suitability on the basis of merit and experience, a candidate with another candidate in the waiting list, for consideration of the State Government.

(4)

The candidates under consideration shall be clear from the vigilance angle.

(5)

The State Government shall appoint the selected candidate after consultation with the Chief Justice of the High Court.

(6)

Every appointment of the President shall be subject to submission of a certificate of physical fitness as indicated in the annexure signed by a civil surgeon or District Medical Officer.

(7)

Before appointment, the selected candidate shall have to furnish an undertaking that he does not and will not have any such financial or other interest as is likely to affect prejudicially his functions as President.

6B.

Selection of Members of the State Commission.

(1)

The process of appointments shall be initiated by the President of the State Commission at least six months before the vacancy arises.

(2)

If a post falls vacant due to resignation or death of a Member or creation of a new post, the process for filling the post shall be initiated immediately after the post has fallen vacant or is created, as the case may be.

(3)

The Advertisement of a vacancy, inviting applications for the posts from eligible candidates will be published in leading newspapers and also circulated in such other manner as the President of the State Commission may deem appropriate.

(4)

Selection of Members of State Commission shall be made by the Selection Committee constituted under sub-section (1-A) of Section 16 of the Act.

(5)

After scrutiny of the applications received till the last date specified for receipt of applications, a list of eligible candidates along with their applications shall be placed before the Selection Committee.

(6)

The Selection Committee shall short list the applicants in the following manner, namely -

(a)

in the case of candidates having judicial background, on the basis of the judgements and other judicial orders passed by such candidates;

(b)

in the case of candidates having experience of working under the Central Government or any State Government or an undertaking under the Central Government or the State Government, on the basis of their available Annual Confidential Report for the last ten years and their experience relevant to the post applied for;

(c)

in other cases, on the basis of a written test of two papers as per the following scheme. The qualifying marks in each paper shall be 50%.

Paper

Topics

Nature of Test

Max. marks

Duration

Paper I

(a) General knowledge

and Current Affairs

(b) Board features
of the Code of Civil Procedure

(c) Knowledge of
various Consumer related Laws as indicated in the schedule.

(d) Knowledge of Constitution of India

Objective Type

100

2 hours

Paper II

(a) One Essay on
topics chosen from issues on trade and commerce, consumer related
issue or Public Affairs.

(b) One case study of a consumer case for
testing the abilities of analysis and cogent drafting of orders.

Descriptive Type

100

3 hours

(7)

The Selection Committee shall interview all shortlisted candidates and award marks with due weightage to the personality, relevant past experience, quality of the judgments, knowledge of law, special achievements, aptitude and vision for the assignment to be taken up.

(8)

The Selection Committee shall recommend a panel of names of candidates for appointment as Member from amongst the candidates in the order of merit for the consideration of the State Government.

(9)

The State Government shall, verify or cause to be verified the credential and antecedents of the recommended candidates.

(10)

Every appointment of a Member shall be subject to submission of a certificate of physical fitness as indicated in the annexure signed by a civil surgeon or District Medical Officer to his medical fitness.

(11)

Before appointment, the selected candidate shall have to furnish an undertaking that he does not and will not have any such financial or other interest as is likely to affect prejudicially his functions as such Member.

6C.

Salaries/Remunerations of the whole-time President and Members of the State Commission.

(1)

President of the State Commission shall receive the salary, allowances and other perquisites as are admissible to a sitting Judge of the High Court of the State.

(2)

A whole-time Member of the State Commission shall be paid a remuneration equivalent to the pay at minimum of the scale of pay of Special Secretary in the State Government and other allowances as admissible:

Provided that serving Government servants appointed on deputation basis shall be entitled to salary and allowances under the provisions applicable to deputationists. Fixation of pay of the persons retired from Government Service, appointed to the posts of President or Member on whole-time basis, shall be on the basis of the pay last drawn reduced by the amount of pension.

6D.

Salaries/Remuneration of the part time Members of the State Commission.

(1)

A part time Member of the State Commission shall be paid a consolidated remuneration of Rupees Five thousand in X class cities, Rupees Four thousand in Y class cities and Rupees Three thousand in other places, per day of sitting.

(2)

Remuneration of the part time appointees shall be reviewed every three years taking into consideration the consumer price index.

(3)

Remuneration in the case of appointments made on additional charge basis shall be governed by the relevant provisions in the Financial rules as amended.

6E.

Leave and Medical treatment and hospital facilities to the whole-time appointees.

- Whole-time appointees shall be entitled to leave, LTC, medical treatment and hospital facilities as per the provisions applicable to Group A Government servants in the State Government.

6F.

Payment of the salary and other allowances.

(1)

The salary, remuneration and other allowances shall be defrayed out of the Consolidated Fund of the State Government.

(2)

The President and the Members of the State Commission shall be eligible for such travelling allowance and daily allowance on official tour as are admissible to Grade 1 officer of the State Government.

6G.

The terms and conditions of the service of the President and the Members of the State Commission shall not be varied to their disadvantage during their tenure of office.]

7.

Place of sitting and other matters relating to State Commission [Section 14 (3) read with Section 18].

(1)

Office of the State Commission shall be located at the capital of the State.

(2)

The working days and the office hours of the State Commission shall be the same as that of the State Government.

(3)

The official seal and emblem of the State Commission shall be such as the State Government may specify.

(4)

Sitting of the State Commission, as and when necessary, shall be convened by the President.

(5)

No act or proceedings of the State Commission shall be invalid by reasons only of the existence of any vacancy among its members or any defect in its constitution thereof.

(6)

State Government shall appoint such staff, as may be necessary to assist the State Commission in its work and perform such other functions as are provided under these rules or assigned to it by the President. The salary payable to such staff shall be defrayed out of the Consolidated Fund of the State Government.

(7)

Where the opposite party admits the allegation made by the complainant, the State Commission shall decide the complaint on the basis of the merit of the case and documents present before it.

(8)

If during the proceedings conducted under Section 13, State Commission fixes a date for hearing of the parties. It shall be obligatory on the complainant and opposite party or his authorised agent to appear before the State Commission on such date of hearing or any other date to which hearing could be adjourned. Where the complainant or his authorised agent fails to appear before the State Commission on such day, the State Commission may in its discretion either dismiss the complaint for default or decide it on merits where the opposite party or its authorised agent fails to appear on the day of hearing, the State Commission may decide the complaint ex parte.

(9)

While proceedings under sub-rule (8) the State Commission may, on such terms as it may think fit and at any state, adjourn the hearing of the complaint but not more than one adjournment shall ordinarily be given and the complaint should be decided within 90 days from the date of notice received by the opposite party where complaint does not

require analysis or testing of the goods and within 150 days if it requires analysis or testing of the goods.

(10)

Orders of the State Commission shall be signed and dated by the members of the State Commission constituting the Bench and shall be communicated to the parties free of charge.

8.

Procedure for hearing appeal (Section 15).

(1)

Memorandum shall be presented by the appellant or his authorised agent to the State Commission in person or sent by registered post addressed to the Commission.

(2)

Every memorandum filed under sub-rule (1) shall be in legible handwriting preferably typed and shall set forth concisely under distinct heads, the grounds of appeal without any argument or narrative and such ground shall be numbered consecutively.

(3)

Each memorandum shall be accompanied by the certified copy of the order of the District Forum appealed against and such of the documents as may be required to support grounds of objection mentioned in the memorandum.

(4)

When the appeal is presented after the expiry of period of limitation as specified in the Act, memorandum shall be accompanied by, an application supported by an affidavit setting forth the fact on which appellant relies to satisfy the State Commission that he has sufficient cause for not preferring the appeal within the period of limitation.

(5)

The appellant shall submit four copies of the memorandum to the State Commission for official purposes.

(6)

On the date of hearing or any other day to which hearing may be adjourned, it shall be obligatory for the parties or their authorised agents to appear before the State Commission. If appellant or his authorised agent fails to appear on such date, the State Commission may, in its discretion, either dismiss the appeal or decide it on the merit of the case. If respondent or his authorised agents fails to appear on such date, the State Commission shall proceed ex parte and shall decide the appeal ex parte on merits of the case.

(7)

The appellant shall not, except by leave of the State Commission, urge or be heard in support of any ground of objections not set forth in the memorandum but the State Commission, in deciding the appeal, shall not confine to the ground of objection set forth in the memorandum or taken by leave of the State Commission under this rule:

Provided that the Commission shall not rest its decision on any other ground unless the party who may be affected thereby, has been given, at least one opportunity of being heard by the State Commission.

(8)

State Commission may, on such terms as it may think fit and at any stage, adjourn the hearing of appeal, but not more than one adjournment shall ordinarily be given and the appeal should be decided within 90 days from the first date of hearing.

(9)

Order of the State Commission on appeal shall be signed and dated by the members of the State Commission constituting the Bench and shall be communicated to the parties free of charge.

9.

[Removal of President and Members of State Commission and District Fora from office in certain circumstances.

[Substituted by Notification 01/2019/39-84-2-2019-C.P.25/2017, dated 21.2.2019.]

(1)

The State Government may remove from office, the President or any Member, who, -

(a)

has been adjudged as an insolvent; or

(b)

has been convicted of an offence which, in the opinion of the State Government, involves moral turpitude; or

(c)

has become physically or mentally incapable of acting as the President or the Member; or

(d)

has acquired such financial or other interest as is likely to affect prejudicially his functions as the President or a Member;

or

(e)

has so abused his position as to render his continuance in office prejudicial to the public interest; or

(f)

remains absent in three consecutive sittings except without leave or for reasons beyond his control.

(2)

Notwithstanding anything contained in sub-rule (1), the President of the State Commission shall not be removed from his office on the grounds specified in clauses (d), (e) and (f) of that sub-rule except after an inquiry held by a sitting Judge of the High Court nominated by the Chief Justice of the High Court in which the President of the State Commission has been informed of the charges against him and given a reasonable opportunity of being heard in respect of those charges and found guilty.

(3)

Notwithstanding anything contained in sub-rule (1) a Member of the State Commission, President or Member of the District Forum shall not be removed from his office on the grounds specified in clauses (d), (e) and (f) of that sub-rule except after an inquiry held by a Member of the National Commission nominated by the President of the National Commission, in which the President or Member of the District Forum or the Member of the State Commission, as the case may be, has been informed of the charges against him and given a reasonable opportunity of being heard in respect of those charges and found guilty.]

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Translation